

road showing use went through the gate to the Rader Property at the time the Culpers bought the Phillips Property. (AMF 3.) Sara contends her grandfather put his mobile home on the Rader Property in 1974 and this is the home that Sara lives in today. (AMF 4.) Sara contends that her grandfather used the road across the Phillips Property for years and that she continued to openly do so from 2010 until the events giving rise to this lawsuit (AMF 5.) Sara contends that neither she, nor her Grandparents, ever sought permission from the Phillips to use the road. (AMF 7.) Jack Rader kept his own lock on the access gate from 1981 until his death in 2012, and then Sara continued to use her own lock at that time. (AMF 8.) Sara contends that Mr. Cupler visited the Phillips Property multiple times before purchasing it and was in fact friends with her grandfather. (AMF 9, 10.)

Kelly Lynn obtained one-half interest in the Subject Property in 2009 and then the other one-half interest in 2017. (UMF 11, 15.) After Kelly-Lynn took sole ownership, she continued to permit Sara to use the road and provided access through the gate. (UMF 46.) Sara admitted in discovery in 2023 that the road was used without interference until acrimonious events began two years before then (2021) (UMF 47.)

In or around 2021, Sara filed a complaint against Plaintiffs seeking the establish title pursuant to the Easement. (UMF 20.) Shortly thereafter, Kelly Lynn withdrew permission allowing Sara to use the road on the Phillips Property. (UMF 21.) Sara thereafter cut the locks on the gate and continued to use the roadway. (UMF 22.) It appears undisputed that in order to access the Rader Property, Sara must also traverse across a property belonging to the Burchards – who have never attempted to block Sara's access. (AMF 12.)

On June 23, 2022 Plaintiffs filed the instant action, bringing causes of action against Defendant for 1) Quiet Title, 2) Declaratory Relief, 3) Injunctive Relief, 4) Nuisance, 5) Trespass, and 6) Slander of Title. Defendant filed an Amended Cross-Complaint alleging similar claims on August 18, 2022.

Plaintiffs moves for summary adjudication or summary judgment on all causes of action, in the FACC involving the existence of easements. Defendant seeks adjudication of the competing claims for quiet title, declaratory relief and slander of title.

II. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

Defendant has the initial burden to show Plaintiffs' claims have no merit by showing either (1) that one or more elements of each cause of action cannot be established or (2) there is a complete defense to the claims. (Code Civ. Proc., § 437c(p)(2); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-850.) If Defendant meets that burden, then the burden shifts to Plaintiffs to show that a triable issue of material fact exists as to the element or defense at issue. (*Ibid.*) In ruling on a motion for

summary judgment, the court must view the evidence in the light most favorable to the opposing party. (*Aguilar, supra*, 25 Cal.4th at p. 843.)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

III. Legal Analysis

A. Quiet Title

The elements of an action to quiet title are: 1) the plaintiff is the owner and in possession of the land and 2) the defendant claims an interest therein adverse to the plaintiff. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 740.)

Here, it is undisputed that the Plaintiffs own the Roadway – or at least that part of the Roadway that is at issue.

Sara acknowledges that she does not have legal or formal ownership of any easement over or in part of the roadway. However, she asserts ownership under either a notice theory, prescriptive easement, or abutter's rights. Plaintiffs, however, argue that there are no questions of material fact remaining and that Sara cannot maintain her cause of action for quiet title.

Constructive notice of an adverse interest to property can be had in two ways. First, constructive notice arises by the proper recording of an instrument containing that property right. (*Vasquez v. LBS Financial Credit Union* (2020) 52 Cal.App.5th 97, 108.) That clearly did not happen in this case. It is also possible to have constructive notice of a potential defect to the title where the purchaser "has knowledge of circumstances which, upon reasonable inquiry, would lead to that particular fact." (*Ibid* [citations omitted].) That is, in certain circumstances, where the purchaser has knowledge of certain facts or circumstances that should warn them of the need to make further inquiries into whether there are an adverse claims to the property. (*Ibid*.)

The determination as to whether a party is a good faith purchaser is typically a question of fact. (*Ibid*.) Here, there are substantial questions of material fact remaining with regards to whether the Culpers were on notice, when they purchased the Phillips Property, that occupants of the Rader Property were using the access roadway. There is substantial evidence that the access road was open and obvious, that the Rader family had used it repeatedly and continuously for decades, that the Culpers were aware that the Raders had their name and address and lock on the access gate, and that multiple Rader family members were openly and continuously using the access road. At the same time, Plaintiffs argue that any of these "notices" of use were "neighborly accommodations" (MSJ p. 14.) Thus, there are quite clearly multiple issues of material fact with regards to the nature, obviousness, and use of the roadway by the Raders at the time the Culpers took ownership.